

MAKING OF THE CONSTITUTION

1934-1946: THE ROUTE TO → COMPOSITION CHANGED WITH PARTITION → COMMITTEE ARCHITECTURE: DISTRIBUTED AUTHORSHIP → DRAFTING PIPELINE, DEBATE METRICS → PEOPLE, OFFICES AND CONSTITUTIONAL → DEBATE MAP: RIGHTS, FEDERALISM

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • source generation g18 and all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 1934-1946: THE ROUTE TO A CONSTITUTION-MAKING BODY

THE ROUTE TO A CONSTITUTION-MAKING BODY

1934 M.N. ROY ADVANCES THE CONSTITUENT ASSEMBLY IDEA

1935 CONGRESS FORMALLY DEMANDS A CONSTITUENT ASSEMBLY

1938 NEHRU SPECIFIES AN ASSEMBLY ELECTED ON ADULT FRANCHISE

1940 AUGUST OFFER ACCEPTS THE PRINCIPLE OF INDIAN CONSTITUTION-MAKING

1942 CRIPPS PROPOSAL OFFERS POST-WAR CONSTITUTION-MAKING

1946 CABINET MISSION SUPPLIES THE OPERATIVE SCHEME INDIRECTLY ELECTED

DO NOT ATTACH NEHRU'S ADULT-FRANCHISE FORMULATION TO 1935.

1934 M.N. Roy advances the Constituent Assembly idea

1935 Congress formally demands a Constituent Assembly

1938 Nehru specifies an Assembly elected on adult franchise, free from outside interference

1940 August Offer accepts the principle of Indian constitution-making

1942 Cripps proposal offers post-war constitution-making

CONSTITUTIONAL BASIS / ARTICLE

- 1934 M.N. Roy advances the Constituent Assembly idea
- 1935 Congress formally demands a Constituent Assembly
- 1938 Nehru specifies an Assembly elected on adult franchise, free from outside interference

POWER / PROCEDURE

- 1940 August Offer accepts the principle of Indian constitution-making
- 1942 Cripps proposal offers post-war constitution-making
- 1946 Cabinet Mission supplies the operative scheme indirectly elected provincial representatives princely-state nominees

CHECK / LIMIT

- community allocation within provincial seats population ratio broadly one seat per million
- TRAP: do not attach Nehru's adult-franchise formulation to 1935.
- MUST REMEMBER: The making sequence must distinguish demand, Cabinet Mission constitution,

FEDERAL / RIGHTS IMPACT

- composition, committees, drafting, three readings, adoption, signing and commencement, with
- Articles 393-395 controlling the final legal transition.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: do not attach Nehru's adult-franchise formulation to 1935.

01

STAGE 01 COMPOSITION CHANGED WITH PARTITION; AUTHORITY CHANGED WITH INDEPENDENCE

COMPOSITION CHANGED WITH PARTITION; AUTHORITY CHANGED WITH INDEPENDENCE

CABINET MISSION PLAN

389 PROVINCES 296

292 GOVERNOR'S PROVINCES + 4 CHIEF COMMISSIONERS PRINCELY STATES

ELECTION RESULT

CONGRESS 208; MUSLIM LEAGUE 73; OTHERS 15

9 DEC 1946

FIRST SITTING; ONLY 211 ATTENDED AMID LEAGUE BOYCOTT

CABINET MISSION PLAN: 389 provinces 296 = 292 Governor's provinces + 4 Chief Commissioners princely

ELECTION RESULT: Congress 208; Muslim League 73; others 15

9 DEC 1946: first sitting; only 211 attended amid League boycott

PARTITION → RECONSTITUTED ASSEMBLY: 299 = provinces 229 + states 70

CONSTITUTIONAL BASIS / ARTICLE

- CABINET MISSION PLAN: 389 provinces 296 = 292 Governor's provinces + 4 Chief Commissioners princely states 93
- ELECTION RESULT: Congress 208; Muslim League 73; others 15
- 9 DEC 1946: first sitting; only 211 attended amid League boycott

POWER / PROCEDURE

- PARTITION → RECONSTITUTED ASSEMBLY: 299 = provinces 229 + states 70
- 15 AUG 1947: sovereign constitution-maker + Dominion legislature
- 26 NOV 1949: Constitution adopted

CHECK / LIMIT

- 24 JAN 1950: 284 members signed
- 26 JAN 1950: Republic + provisional Parliament
- TRAPS: 299 = strength; 211 = first-sitting attendance; 284 = signatories.

FEDERAL / RIGHTS IMPACT

- PARTITION → RECONSTITUTED ASSEMBLY: 299 = provinces 229 + states 70

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (SOVEREIGNTY ARGUMENT): Sovereignty criticism must be periodised: the Cabinet Mission shaped the Assembly's origin, while the 1947 Act removed the continuing British legal veto.

02

STAGE 02 COMMITTEE ARCHITECTURE: DISTRIBUTED AUTHORSHIP, NOT SEVEN-PERSON MYTHOLOGY

COMMITTEE ARCHITECTURE

DISTRIBUTED AUTHORSHIP, NOT SEVEN-PERSON MYTHOLOGY

EIGHT MAJOR COMMITTEES

UNION POWERS; UNION CONSTITUTION; STATES

PROVINCIAL CONSTITUTION; ADVISORY

RAJENDRA PRASAD

RULES OF PROCEDURE; STEERING

DRAFTING COMMITTEE (7 MEMBERS; APPOINTED 29 AUG 1947)

EIGHT MAJOR COMMITTEES

Nehru: Union Powers; Union Constitution; States

Patel: Provincial Constitution; Advisory

Rajendra Prasad: Rules of Procedure; Steering

CONSTITUTIONAL BASIS / ARTICLE

- EIGHT MAJOR COMMITTEES
- Nehru: Union Powers; Union Constitution; States
- Patel: Provincial Constitution; Advisory

POWER / PROCEDURE

- Rajendra Prasad: Rules of Procedure; Steering
- Ambedkar: Drafting Committee (7 members; appointed 29 Aug 1947)
- ADVISORY SUBCOMMITTEES

CHECK / LIMIT

- Fundamental Rights — J.B. Kripalani
- Minorities — H.C. Mookherjee
- Assam tribal/excluded areas — Gopinath Bardoloi other excluded areas — A.V. Thakkar

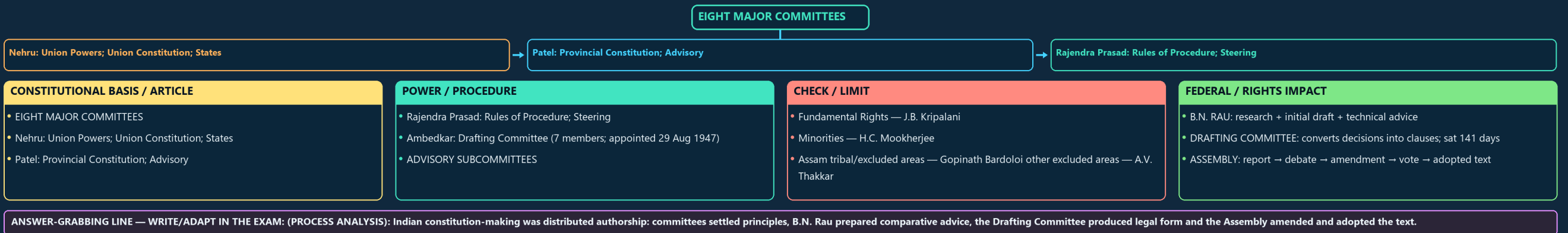
FEDERAL / RIGHTS IMPACT

- B.N. RAU: research + initial draft + technical advice
- DRAFTING COMMITTEE: converts decisions into clauses; sat 141 days
- ASSEMBLY: report → debate → amendment → vote → adopted text

02

STAGE 02 COMMITTEE ARCHITECTURE: DISTRIBUTED AUTHORSHIP, NOT SEVEN-PERSON MYTHOLOGY

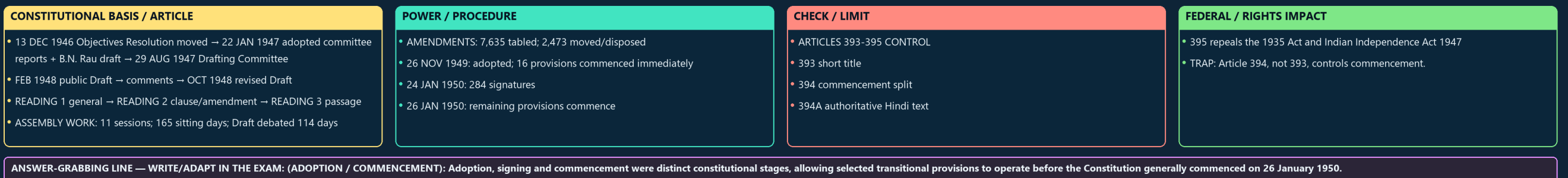
COMMITTEE ARCHITECTURE DISTRIBUTED AUTHORSHIP, NOT SEVEN-PERSON MYTHOLOGY EIGHT MAJOR COMMITTEES UNION POWERS; UNION CONSTITUTION; STATES PROVINCIAL CONSTITUTION; ADVISORY RAJENDRA PRASAD RULES OF PROCEDURE; STEERING DRAFTING COMMITTEE (7 MEMBERS; APPOINTED 29 AUG 1947)



03

STAGE 03 DRAFTING PIPELINE, DEBATE METRICS AND COMMENCEMENT ARTICLES

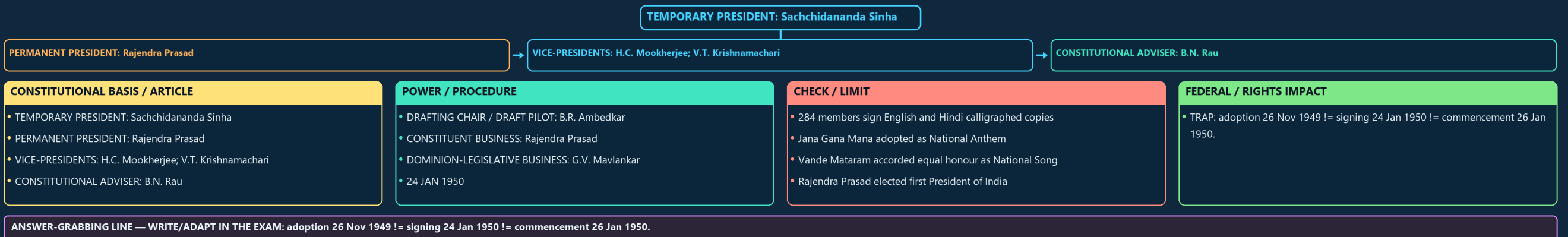
DRAFTING PIPELINE, DEBATE METRICS AND COMMENCEMENT ARTICLES 13 DEC 1946 OBJECTIVES RESOLUTION MOVED 22 JAN 1947 ADOPTED COMMITTEE REPORTS + B.N. RAU 29 AUG 1947 DRAFTING COMMITTEE FEB 1948 PUBLIC DRAFT OCT 1948 REVISED DRAFT READING 1 GENERAL READING 2 CLAUSE/AMENDMENT



04

STAGE 04 PEOPLE, OFFICES AND CONSTITUTIONAL SYMBOLS

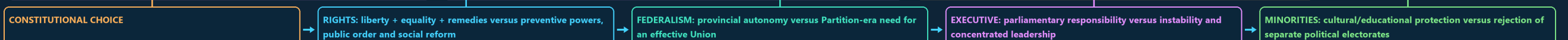
PEOPLE, OFFICES AND CONSTITUTIONAL SYMBOLS TEMPORARY PRESIDENT SACHCHIDANANDA SINHA PERMANENT PRESIDENT RAJENDRA PRASAD H.C. MOOKHERJEE; V.T. KRISHNAMACHARI CONSTITUTIONAL ADVISER B.N. RAU



05

STAGE 05 DEBATE MAP: RIGHTS, FEDERALISM, EXECUTIVE AND SOCIAL REVOLUTION

DEBATE MAP RIGHTS, FEDERALISM, EXECUTIVE AND SOCIAL REVOLUTION CONSTITUTIONAL CHOICE LIBERTY + EQUALITY + REMEDIES VERSUS PREVENTIVE POWERS, PUBLIC PROVINCIAL AUTONOMY VERSUS PARTITION-ERA NEED FOR AN EFFECTIVE UNION PARLIAMENTARY RESPONSIBILITY VERSUS INSTABILITY AND CONCENTRATED LEADERSHIP CULTURAL/EDUCATIONAL PROTECTION VERSUS REJECTION OF SEPARATE POLITICAL ELECTORATES SOCIAL REVOLUTION ENFORCEABLE RIGHTS + DIRECTIVE PRINCIPLES + AFFIRMATIVE



CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• TEMPORARY PRESIDENT: Sachchidananda Sinha • PERMANENT PRESIDENT: Rajendra Prasad • VICE-PRESIDENTS: H.C. Mookherjee; V.T. Krishnamachari • CONSTITUTIONAL ADVISER: B.N. Rau	• DRAFTING CHAIR / DRAFT PILOT: B.R. Ambedkar • CONSTITUENT BUSINESS: Rajendra Prasad • DOMINION-LEGISLATIVE BUSINESS: G.V. Mavlankar • 24 JAN 1950	• 284 members sign English and Hindi calligraphed copies • Jana Gana Mana adopted as National Anthem • Vande Mataram accorded equal honour as National Song • Rajendra Prasad elected first President of India	• TRAP: adoption 26 Nov 1949 != signing 24 Jan 1950 != commencement 26 Jan 1950.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: adoption 26 Nov 1949 != signing 24 Jan 1950 != commencement 26 Jan 1950.			

05

05

STAGE 05

DEBATE MAP: RIGHTS, FEDERALISM, EXECUTIVE AND SOCIAL REVOLUTION

DEBATE MAP

RIGHTS, FEDERALISM, EXECUTIVE AND SOCIAL REVOLUTION

CONSTITUTIONAL CHOICE

LIBERTY + EQUALITY + REMEDIES VERSUS PREVENTIVE POWERS, PUBLIC

PROVINCIAL AUTONOMY VERSUS PARTITION-ERA NEED FOR AN EFFECTIVE UNION

PARLIAMENTARY RESPONSIBILITY VERSUS INSTABILITY AND CONCENTRATED LEADERSHIP

CULTURAL/EDUCATIONAL PROTECTION VERSUS REJECTION OF SEPARATE POLITICAL ELECTORATES

SOCIAL REVOLUTION ENFORCEABLE RIGHTS + DIRECTIVE PRINCIPLES + AFFIRMATIVE

CONSTITUTIONAL CHOICE

RIGHTS: liberty + equality + remedies versus preventive powers, public order and social reform

FEDERALISM: provincial autonomy versus Partition-era need for an effective Union

EXECUTIVE: parliamentary responsibility versus instability and concentrated leadership

MINORITIES: cultural/educational protection versus rejection of separate political electorates

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

• CONSTITUTIONAL CHOICE

• RIGHTS: liberty + equality + remedies versus preventive powers, public order and social reform

• FEDERALISM: provincial autonomy versus Partition-era need for an effective Union

• EXECUTIVE: parliamentary responsibility versus instability and concentrated leadership

• MINORITIES: cultural/educational protection versus rejection of separate political electorates

• SOCIAL REVOLUTION enforceable rights + Directive Principles + affirmative action

• RESULT: political democracy joined an unfinished social transformation.

• CLOSE DISTINCTION: 389, 299, 211 and 284 measure different things

• indirect election and princely nomination do not negate the Assembly's post-15 August 1947 sovereign status.

• EXECUTIVE: parliamentary responsibility versus instability and concentrated leadership

MECHANISM / VERDICT — RESULT: political democracy joined an unfinished social transformation.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (LEGITIMACY COMPENSATION): The Constituent Assembly's representativeness depended on indirect selection, social range, political dominance, boycott and post-Partition change rather than any single numerical measure.

06

06

STAGE 06

BORROWED PROVISIONS BECAME INDIAN CONSTITUTIONAL ADAPTATIONS

BORROWED PROVISIONS BECAME INDIAN CONSTITUTIONAL ADAPTATIONS

SOURCE INDIAN ADAPTATION

UK CABINET RESPONSIBILITY + PARLIAMENTARY GOVERNMENT

US FUNDAMENTAL RIGHTS + JUDICIAL REVIEW + IMPEACHMENT IDEAS

IRELAND DIRECTIVE PRINCIPLES + PRESIDENTIAL NOMINATION METHOD

CANADA FEDERATION WITH STRONG CENTRE + RESIDUARY UNION POWER

AUSTRALIA CONCURRENT LIST + TRADE PROVISIONS + JOINT SITTING

GERMANY EMERGENCY IDEAS, CONSTITUTIONALLY RECAST

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
SOURCE INDIAN ADAPTATION	Ireland Directive Principles + presidential nomination method	Germany emergency ideas, constitutionally recast	TEST: borrowed device + Indian problem + altered setting = Indian rule
UK cabinet responsibility + parliamentary government	Canada federation with strong Centre + residuary Union power	South Africa amendment elements + Rajya Sabha election method	VERDICT: sources supplied techniques; the Assembly supplied hierarchy and legitimacy.
US Fundamental Rights + judicial review + impeachment ideas	Australia Concurrent List + trade provisions + joint sitting	Gol Act 1935 machinery stripped of imperial sovereignty	

CONSTITUTIONAL BASIS / ARTICLE

• SOURCE INDIAN ADAPTATION

• UK cabinet responsibility + parliamentary government

• US Fundamental Rights + judicial review + impeachment ideas

POWER / PROCEDURE

• Ireland Directive Principles + presidential nomination method

• Canada federation with strong Centre + residuary Union power

• Australia Concurrent List + trade provisions + joint sitting

CHECK / LIMIT

• Germany emergency ideas, constitutionally recast

• South Africa amendment elements + Rajya Sabha election method

• Gol Act 1935 machinery stripped of imperial sovereignty

FEDERAL / RIGHTS IMPACT

• TEST: borrowed device + Indian problem + altered setting = Indian rule

• VERDICT: sources supplied techniques; the Assembly supplied hierarchy and legitimacy.

MECHANISM / VERDICT — VERDICT: sources supplied techniques; the Assembly supplied hierarchy and legitimacy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: sources supplied techniques; the Assembly supplied hierarchy and legitimacy.

07

STAGE 07 CRITICISM AND EVIDENCE-LED REPLY				
CRITICISM AND EVIDENCE-LED REPLY	NO ADULT-FRANCHISE ELECTION	REAL MANDATE DEFICIT; RESTRICTED FRANCHISE, PRINCELY NOMINATION, PARTITION AND	CONGRESS DOMINATION	208/296 CONFIRMS DOMINANCE; INTERNAL DIVERSITY, COMMITTEES, DISSENT AND PUBLIC
PRECISION MEDIATED FEDERAL, RIGHTS AND TRANSITION CONFLICT SELECTIVE BORROWING WAS RECOMBINED AND INDIA-SPECIFIC SOCIAL UNDER-REPRESENTATION				
CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT	
• NO ADULT-FRANCHISE ELECTION → real mandate deficit • restricted franchise, princely nomination, Partition and no universal rolls explain but do not erase it	• CONGRESS DOMINATION → 208/296 confirms dominance; internal diversity, committees, dissent and public comments complicate a one-party caricature • LAWYER-MADE / OVER-LEGAL → precision mediated federal, rights and transition conflict	• COPIED → selective borrowing was recombined and India-specific • SOCIAL UNDER-REPRESENTATION → exclusions were real despite minority/women/Dalit voices	• EXCESSIVE TIME → 2 years, 11 months, 18 days covered Partition and clause scrutiny • VERDICT: imperfect electoral origin + substantial deliberative authorship.	

- US Fundamental Rights + judicial review + impeachment ideas
- Australia Concurrent List + trade provisions + joint sitting
- Gol Act 1935 machinery stripped of imperial sovereignty
- legitimacy.

MECHANISM / VERDICT — VERDICT: sources supplied techniques; the Assembly supplied hierarchy and legitimacy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: sources supplied techniques; the Assembly supplied hierarchy and legitimacy.

07

STAGE 07CRITICISM AND EVIDENCE-LED REPLY

CRITICISM AND EVIDENCE-LED REPLYNO ADULT-FRANCHISE ELECTIONREAL MANDATE DEFICIT; RESTRICTED FRANCHISE, PRINCELY NOMINATION, PARTITION ANDCONGRESS DOMINATION208/296 CONFIRMS DOMINANCE; INTERNAL DIVERSITY, COMMITTEES, DISSENT AND PUBLICPRECISION MEDIATED FEDERAL, RIGHTS AND TRANSITION CONFLICTSELECTIVE BORROWING WAS RECOMBINED AND INDIA-SPECIFICSOCIAL UNDER-REPRESENTATION

CONSTITUTIONAL BASIS / ARTICLE

- NO ADULT-FRANCHISE ELECTION → real mandate deficit
- restricted franchise, princely nomination, Partition and no universal rolls explain but do not erase it

POWER / PROCEDURE

- CONGRESS DOMINATION → 208/296 confirms dominance; internal diversity, committees, dissent and public comments complicate a one-party caricature
- LAWYER-MADE / OVER-LEGAL → precision mediated federal, rights and transition conflict

CHECK / LIMIT

- COPIED → selective borrowing was recombined and India-specific
- SOCIAL UNDER-REPRESENTATION → exclusions were real despite minority/women/Dalit voices

FEDERAL / RIGHTS IMPACT

- EXCESSIVE TIME → 2 years, 11 months, 18 days covered Partition and clause scrutiny
- VERDICT: imperfect electoral origin + substantial deliberative authorship.

MECHANISM / VERDICT — VERDICT: imperfect electoral origin + substantial deliberative authorship.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (CRITICISM / REPLY): The Assembly was weak on direct electoral mandate but stronger on social range, reason-giving and the universal franchise it created.

08

STAGE 08FOUR PYQ CONTROLS AND RECURRING PRELIMS TRAPS

FOUR PYQ CONTROLS AND RECURRING PRELIMS TRAPSY2021 GS-I Q93ON 26 JAN 1950 INDIA BECAME A SOVEREIGN DEMOCRATIC2023 GS-I Q85CONSTITUTION DAY AND DRAFTING COMMITTEE STATEMENTS2024 GS-I Q61SACHCHIDANANDA SINHAPROVISIONAL PRESIDENT

389/299/211/284Rajendra Prasad/Mavlankar

Rau/Ambekar/Assemblyparent committee/subcommittee chair original 395 Articles + 8 Schedules versus today's totals

adoption/signing/commencement

CONSTITUTIONAL BASIS / ARTICLE

- 2021 GS-I Q93: on 26 Jan 1950 India became a Sovereign Democratic Republic
- 2023 GS-I Q85: Constitution Day and Drafting Committee statements

POWER / PROCEDURE

- 2024 GS-I Q61: Sachchidananda Sinha = provisional President
- 2026 GS-I Q55: Articles 393-395 text supports statements 1 and 3 repository key is provisional/conflicting; preserve qualification

CHECK / LIMIT

- RECURRING TRAPS
- Rajendra Prasad/Mavlankar

FEDERAL / RIGHTS IMPACT

- parent committee/subcommittee chair original 395 Articles + 8 Schedules versus today's totals
- Debates are persuasive aids; enacted text remains supreme.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 393-395 text supports statements 1 and 3 repository key is provisional/conflicting; preserve qualification.

09

STAGE 09EXACT 10/15/20-MARK ANSWER ARCHITECTURE

EXACT 10/15/20-MARK ANSWER ARCHITECTURE10 MARKS150 WORDS1. DEFINE THE ISSUE/DEMAND. 2. USE 389–299 PLUS ONE3. ADD ONE COMMITTEE-ROLE DISTINCTION. 4. GIVE BALANCED VERDICT.15 MARKS250 WORDS1. THESIS. 2. ORIGINS 1934-46. 3. COMPOSITION + SOVEREIGNTY

10 MARKS / 150 WORDS

1. Define the issue/demand. 2. Use 389–299 plus one exact date.

3. Add one committee-role distinction. 4. Give balanced verdict.

15 MARKS / 250 WORDS

1. Thesis. 2. Origins 1934-46. 3. Composition + sovereignty shift.

CONSTITUTIONAL BASIS / ARTICLE

- 10 MARKS / 150 WORDS
- 1. Define the issue/demand. 2. Use 389–299 plus one exact date.
- 3. Add one committee-role distinction. 4. Give balanced verdict.
- 15 MARKS / 250 WORDS

POWER / PROCEDURE

- 1. Thesis. 2. Origins 1934-46. 3. Composition + sovereignty shift.
- 4. Resolution—committees—draft—readings. 5. Two criticisms with evidence.
- 6. One adaptation/debate example. 7. Graded conclusion.
- 20 MARKS / 250 WORDS

CHECK / LIMIT

- 1. Decode directive and frame legitimacy/originality test.
- 2. Origin deficit: indirect election, nomination, boycott, exclusions.
- 3. Process defence: public draft, 7,635/2,473 amendments, 114 debate days.
- 4. Distributed authorship: Rau → committees → Drafting → Assembly.

FEDERAL / RIGHTS IMPACT

- 5. Substance: rights, federalism, social revolution, adapted borrowing.
- 6. Limits and counterweight in paired table. 7. Nuanced verdict.
- MARKS GRABBER: metric + named institution + mechanism + qualification.

MECHANISM / VERDICT — MARKS GRABBER: metric + named institution + mechanism + qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: metric + named institution + mechanism + qualification.

10

STAGE 10ARTICLES 393-395: ADOPTION IS NOT COMMENCEMENT

ARTICLES 393-395ADOPTION IS NOT COMMENCEMENTARTICLE 393SHORT TITLECONSTITUTION OF INDIAARTICLE 394SPECIFIED PROVISIONS AT ONCE ON 26 NOV 1949REMAINING PROVISIONS ON 26 JAN 1950

CONSTITUTIONAL BASIS / ARTICLEARTICLE 393 → short title: Constitution of IndiaARTICLE 394 → specified provisions at once on 26 Nov 1949

POWER / PROCEDUREARTICLE 394 → remaining provisions on 26 Jan 1950ARTICLE 395 → repeal of Government of India Act 1935 and Indian Independence Act 1947

CHECK / LIMIT24 JAN 1950 → 284 members signed; signing is not adoption or commencement.ARTICLE 393 → short title: Constitution of India

FEDERAL / RIGHTS IMPACTARTICLE 394 → specified provisions at once on 26 Nov 1949ARTICLE 394 → remaining provisions on 26 Jan 1950

CONSTITUTIONAL BASIS / ARTICLE

- 10 MARKS / 150 WORDS
- 1. Define the issue/demand. 2. Use 389→299 plus one exact date.
- 3. Add one committee-role distinction. 4. Give balanced verdict.
- 15 MARKS / 250 WORDS

POWER / PROCEDURE

- 1. Thesis. 2. Origins 1934-46. 3. Composition + sovereignty shift.
- 4. Resolution→committees→draft→readings. 5. Two criticisms with evidence.
- 6. One adaptation/debate example. 7. Graded conclusion.
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CHECK / LIMIT

- 1. Decode directive and frame legitimacy/originality test.
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MECHANISM / VERDICT — MARKS GRABBER: metric + named institution + mechanism + qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: metric + named institution + mechanism + qualification.

10

STAGE 10ARTICLES 393-395: ADOPTION IS NOT COMMENCEMENT

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CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 393 → short title: Constitution of India	ARTICLE 394 → remaining provisions on 26 Jan 1950	24 JAN 1950 → 284 members signed; signing is not adoption or commencement.	ARTICLE 394 → specified provisions at once on 26 Nov 1949
ARTICLE 394 → specified provisions at once on 26 Nov 1949	ARTICLE 395 → repeal of Government of India Act 1935 and Indian Independence Act 1947	ARTICLE 393 → short title: Constitution of India	ARTICLE 394 → remaining provisions on 26 Jan 1950

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 393 → short title: Constitution of India
- ARTICLE 394 → specified provisions at once on 26 Nov 1949

POWER / PROCEDURE

- ARTICLE 394 → remaining provisions on 26 Jan 1950
- ARTICLE 395 → repeal of Government of India Act 1935 and Indian Independence Act 1947

CHECK / LIMIT

- 24 JAN 1950 → 284 members signed; signing is not adoption or commencement.
- ARTICLE 393 → short title: Constitution of India

FEDERAL / RIGHTS IMPACT

- ARTICLE 394 → specified provisions at once on 26 Nov 1949
- ARTICLE 394 → remaining provisions on 26 Jan 1950

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: (ADOPTION / COMMENCEMENT): Constituent Assembly Debates are persuasive external aids to purpose where text is ambiguous, but they are neither binding law nor a licence to override the enacted Constitution.

11

STAGE 11LEGITIMACY TEST AND INTERPRETIVE-SOURCE HIERARCHY

LEGITIMACY TEST AND INTERPRETIVE-SOURCE HIERARCHYINDIRECT ELECTIONRESTRICTED FRANCHISECONGRESS PREDOMINANCECOMMITTEE PLURALISMREASONED DEBATEPOST-1947 SOVEREIGNTYUNIVERSAL FRANCHISE

CRITIQUE: indirect election→restricted franchise→Congress predominance→REPLY: committee pluralism→reasoned debate

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- CRITIQUE: indirect election - restricted franchise - Congress predominance	- REPLY: committee pluralism - reasoned debate - post-1947 sovereignty	- universal franchise - DEBATES: persuasive external aid when text is ambiguous - LIMIT: enacted constitutional text and later binding doctrine prevail	- VERDICT: legitimacy arose from deliberation plus a democratic constitutional settlement. - LEGAL/SOURCE LIMIT: Constituent Assembly Debates are persuasive historical aids, not enacted law - the constitutional text prevails and later doctrine may develop beyond a single framer's intention.

MECHANISM / VERDICT — VERDICT: legitimacy arose from deliberation plus a democratic constitutional settlement.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: legitimacy arose from deliberation plus a democratic constitutional settlement.

E

EXTRASUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT01. CONGRESS EXPERTS COMMITTEE AND PRE-ASSEMBLY PREPARATION02. DEEPER COMPOSITION AND REPRESENTATION CONTROLS03. COMMITTEE CHAIR MEMORY MAP AND RELEVANT SUBCOMMITTEES04. DRAFTING INTENSITY AND COMPARATIVE STUDY05. CRITIC ATTRIBUTIONS AND EVIDENTIARY CAUTION06. CONSTITUTIONAL CRAFT, AUTHORITATIVE TEXT AND LABELS07. LIVING CONSTITUTION REFINEMENT

OPTIONAL DOCTRINE / CASE

- 01. Congress Experts Committee and pre-Assembly preparation
- 02. Deeper composition and representation controls
- 03. Committee chair memory map and relevant subcommittees
- 04. Drafting intensity and comparative study

ADVANCED LIMIT

- 05. Critic attributions and evidentiary caution
- 06. Constitutional craft, authoritative text and labels
- 07. Living Constitution refinement
- [FACT] Congress appointed an Experts Committee on 8 July 1946 under Jawaharlal Nehru to prepare constitutional material before the Assembly met.

COMPARATIVE NUANCE

- [FACT] Its membership included Asaf Ali, K.M.
- Munshi, N.
- Gopalaswami Ayyangar, K.T.
- Shah, D.R.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.